

23STCV21356 23STCV21356

County: los-angeles

Division: Civil Law and Motion

Department: F51

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Case Number: 23STCV21356 Hearing Date: June 29, 2026 Dept: F51

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

JUNE 26, 2026

MOTION TO DISMISS

Los Angeles Superior Court Case # 23STCV21356

Motion

Filed: 2/17/26

MOVING

PARTY: Defendant

CRH California Water, Inc. dba Culligan of Sylmar, as Culligan 52, as Culligan Water of Los Angeles, and as Hall's Culligan Commercial Water ("Defendant")

RESPONDING

PARTY: Jose

Castillo ("Plaintiff")

NOTICE:

OK

RELIEF

REQUESTED: An order dismissing the instant action for lack of prosecution.

TENTATIVE

RULING: The unopposed motion is granted. The motion to compel arbitration is off-calendar as moot.

BACKGROUND

This is an employment class action brought by Plaintiff against Defendant, his employer. On 9/6/23, Plaintiff filed his complaint against Defendant, alleging the following causes of action: (1) Disability Discrimination; (2) Discrimination on the Basis of National Origin; (3) Harassment; (4) Retaliation; (5) Failure to Prevent Discrimination, Harassment, and Retaliation; (6) Unpaid Meal Period Premiums; (7) Unpaid Rest Period Premiums; (8) Failure to Pay Overtime; (9) Unfair Competition and/or Unfair Business Practices; (10) Failure to Accommodate; and (11) Failure to Engage in the Interactive Process.

On 12/27/23, the parties stipulated to dismiss Plaintiff's class claims with prejudice and submit all of Plaintiff's claims to contractual arbitration. On 12/28/23, the Court entered the stipulation and order. On 9/15/25, the Court denied Defendant's motion to dismiss the action for lack of prosecution, and ordered the parties "to meet and confer in person or on the phone within 30-days to discuss settlement or alternatively to comply with arbitration requirements." (9/15/25 Min. Order.)

On 2/17/26, Defendant filed the instant renewed motion to dismiss the action for failure to prosecute. No opposition has been filed to date.

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ANALYSIS

A court has the discretion to dismiss an action for delay in prosecution if the action has not been brought to trial or conditionally settled within two years after the action was commenced against the defendant.

(Code Civ. Proc. § 583.410, subd. (a); Cal. Rules of Ct, r. 3.1340(a).) “In ruling on the motion, the court must consider all matters relevant to a proper determination of the motion, including: (1)

The court's file in the case and the declarations and supporting data submitted by the parties and, where applicable, the availability of the moving party and other essential parties for service of process; (2) The diligence in seeking to effect service of process; (3) The extent to which the parties engaged in any settlement negotiations or discussions; (4) The diligence of the parties in pursuing discovery or other pretrial proceedings, including any extraordinary relief sought by either party; (5) The nature and complexity of the case; (6) The law applicable to the case, including the pendency of other litigation under a common set of facts or determinative of the legal or factual issues in the case; (7) The nature of any extensions of time or other delay attributable to either party; (8) The condition of the court's calendar and the availability of an earlier trial date if the matter was ready for trial; (9) Whether the interests of justice are best served by dismissal or trial of the case; and (10) Any other fact or circumstance relevant to a fair determination of the issue.” (Cal. Rules of Ct, r. 3.1342(e).)

Here, Defendant renews its motion to dismiss the action for lack of prosecution, asserting that “between September 15, 2025, and November 5, 2025, Plaintiff did not make any meaningful movement to prosecute this matter or respond to Defendant’s multiple efforts to engage.” (Def.’s Mot. 4:2–3.) “As of the date of the filing of this motion, over two years have passed since Plaintiff initiated this action, and Plaintiff and his counsel(s) have made no movement whatsoever toward its resolution or prosecution.” (Id. at 4:28–5:2.) Defendant argues that therefore, “Plaintiff’s unreasonable delay in pursuing this matter indicate his disinterest in prosecuting or otherwise resolving his own claims.” (Id. at 9:21–22.)

The Court agrees, and further notes Plaintiff's failure to file any opposition to the instant motion. Accordingly, the Court exercises its discretion to grant Defendant's unopposed motion to dismiss the instant action for delay in prosecution.

CONCLUSION

The unopposed
motion is granted.